

25STCV18990 25STCV18990

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Case Number: 25STCV18990 Hearing Date: August 25, 2026 Dept: 517

Plaintiff Elizabeth Gonazlez de Cardona ("de

Cardona") sued Los Angeles County Metropolitan Authority ("LACMTA") and Dennis

Koonce ("Koonce") for monetary damages to compensate her for injuries she suffered

when the motor vehicle she was driving was rear ended by a LACMTA bus that

Koonce was driving. In her Complaint, de

Cardona asserts claims for negligence against LACMTA and Koonce and a claim for

negligent hiring, supervision, retention, or training against LACMTA. Pending before the Court is de Cardona's

motion for an order compelling LACMTA to provide further responses to special

interrogatories ("SROGs") that she propounded on LACMTA. The

Court is granting the motion in part and denying it in part.

Through a belated opposition to the motion (it was eight

days late and was filed just a day before de Cardona's reply brief was due),

LACMTA stated that it was conceding that Koonce was negligent in his operation

of the LACMTA bus that rear ended de Cardona's motor vehicle. It also appears from its opposition that LACMTA

is conceding negligence in connection with the hiring, supervision, retention,

or training of Koonce. LACMTA's

supplemental responses to the SROGs confirm these concessions. To be sure, the Court is quite concerned

about LACMTA's very tardy opposition, for which LACMTA offered no explanation. Nevertheless, the Court exercised its discretion

to consider the opposition. Under *Diaz*

v. *Carcamo*, (2011) 51 Cal.4th 1148, 1155, LACMTA's concessions on de

Cardona's claims and its supplemental responses reflecting the concessions render

irrelevant the SROGs that seek information from LACMTA regarding Koonce's

employment and driving history, and the training, supervision, and discipline

that Koonce received. Those SROGs are

numbers 8, 11, 12, 15-33, 35, and 37.

The motion is denied as to them.

LACMTA's concessions do not, however, render

irrelevant the remaining SROGs that are the subject of de Cardona's motion, which

are numbers 43, 44, 58, and 60. All of

four of those SROGs bear on evidentiary issues or the nature and extent of de

Cardona's claimed injuries stemming from the incident. The Court agrees with de Cardona that LACMTA's

responses to SROG numbers 43, 44, 58, and 60 did not comply with the applicable

requirements of the Code of Civil Procedure. The Court thus directs LACTMA to

provide further, Code-compliant responses to those four SROGs within 21 days of

this order.

The Court also is granting de Cardona's request in

the motion for an order imposing monetary sanctions against LACMTA in the form

of attorney's fees that de Cardona incurred in connection with this discovery

dispute. In the Court's view, LACMTA's

initial responses to the SROGs lacked substantial justification and forced de

Cardona to file the motion seeking further responses. An award of sanctions is thus warranted. The Court is, however, reducing the amount of

sanctions that de Cardona sought in the motion, which was \$7,560. This figure included time that de Cardona's spent

on the meet and confer process and the informal discovery conference that the

Court held regarding the SROGs. The Court

is removing that time from its fees award. This leaves nine hours of counsel's time on

the motion itself, at a billing rate of \$500 per hour. The Court is thus awarding de Cardona \$4,500

in attorney's fees. The Court directs

LACMTA to pay that amount to de Cardona's counsel within 60 days of this order.